

25STCV36520 25STCV36520

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 25STCV36520 Hearing Date: June 26, 2026 Dept: 833

EDRA S.P.A. Case No. 25STCV36520

Hearing:

June 26, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833

DIVA, INC., et. al., Judge: Joseph Lipner

[Tentative] Order on

Application for Writ of Attachment

INTRODUCTION

Plaintiff EDRA S.P.A. ("Plaintiff") moves for a writ of attachment against Defendant DIVA, Inc. ("Defendant") in the amount of \$122,875.37.

The Court GRANTS the writ of attachment, in the amount of \$122,875.37.

LEGAL STANDARD

"Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an

application for the order and writ with the court in which the action is brought.” (Code Civ. Pro. § 484.010.) “Except as otherwise provided by statute, an

attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees.” (Code Civ. Pro. § 483.010.)

The court shall issue a right to attach order if the court finds all of the following:

(1) The claim upon which the attachment is based is one upon which an attachment may be issued.

(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.

(Code Civ. Pro. § 484.090.)

“A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Pro. § 481.190.) “The application shall be supported by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (Code Civ. Pro. § 484.030.) “In contested applications, the court must consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.” (Hobbs v. Weiss (1999) 73 Cal.App.4th 76, 80.) “The Attachment Law statutes are subject to strict construction.” (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

DISCUSSION

A.

Probable Validity of Plaintiff's Claim

The application is based on Plaintiff's cause of action for breach of contract. To establish a claim for breach of contract, a plaintiff must prove: (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach of the contract; and (4) damages incurred by plaintiff as a result of the breach. (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1367.)

Defendant placed orders for Plaintiff's luxury furniture products for resale to Defendant's customers in the United States. (Stefano Decl., ¶ 4.) Plaintiff and Defendant did not execute a formal written supply agreement. (Stefano Decl., ¶ 5.) Rather, their commercial relationship was conducted through purchase orders submitted by Defendant and invoices issued by Plaintiff upon fulfillment of those orders. (Stefano Decl., ¶ 5.) The invoices specified payment terms of NET 60 DAYS FROM INVOICE DATE, payable by SWIFT bank transfer. (Stefano Decl., ¶ 5.)

Between December 2024 and March 2025, Plaintiff manufactured and shipped furniture products to Defendant in response to Defendant's purchase orders. (Stefano Decl., ¶ 6.) The goods were manufactured at Plaintiff's facilities in Italy and delivered to Defendant's designated delivery addresses in Los Angeles and Commerce, California. (Stefano Decl., ¶ 6.) Plaintiff arranged for international shipping of the goods in accordance with the applicable trade terms. (Stefano Decl., ¶ 6.)

At no time did Defendant reject, revoke acceptance of, or raise any objection to the quality, quantity, or condition of the goods delivered by Plaintiff. (Stefano Decl., ¶ 7.) According to the Director of Sales of Plaintiff, Defendant accepted all goods without dispute. (Stefano Decl., ¶ 7.)

Plaintiff claims that Defendant has not paid \$93,439.39 euros (or \$109,772.59 USD) in outstanding invoices. (Stefano Decl., ¶ 10.) All of the outstanding invoices became due and payable 60 days after the invoices. (Stefano Decl., ¶ 11.)

Plaintiff also

claims that Defendant's own attorney has represented that Defendant is facing multiple lawsuits and claims that could result in insolvency, and that there are multiple secured creditors with claims in the millions of dollars. (Stefano Decl., ¶ 17.) Plaintiff remains concerned that Defendant's assets will be exhausted by competing creditors or further dissipated before Plaintiff is able to collect on any judgment. (Stefano Decl., ¶ 18.)

In requests for admission, Defendant has admitted to every element required to establish a breach of contract claim: an agreement existed between the parties, Plaintiff performed their part under the contract, Defendant did not pay the invoices, and a balance remains due. (Kazanci Decl., ¶¶ 5-6.)

Defendant filed no opposition with any contradictory information.

Therefore, the Court concludes that Defendant has failed to rebut Plaintiff's evidence that it has probably valid contract claims against Defendant in the total amount of \$122,875.37.

B.

Basis for Attachment

"[A]n attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees." (Code Civ. Pro. § 483.010, subd. (a).) "An attachment may not be issued on a claim which is secured by any interest in real property arising from agreement"

(Code

Civ. Pro. § 483.010, subd. (b).) "[A]n attachment will lie upon a cause of action for damages for a breach of contract where the damages are readily ascertainable by reference to the contract and the basis of the computation of damages appears to be reasonable and definite." (CIT Group/Equipment Financing, Inc. v. Super DVD, Inc. (2004) 115 Cal.App. 4th 537, 541.)

Here, Plaintiff's application for writ of attachment is based on contract claims for which the total amount allegedly due is in excess of \$500. There is no evidence that the claim is

secured by an interest in real property and the damages appear to be readily ascertainable by reference to the invoices.

C.

Purpose and Amount of Attachment

Code of Civil

Procedure section 484.090 states that the Court shall issue a right to attach order if “the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based . . . [and] the amount to be secured by the attachment is greater than zero.” Plaintiff satisfied these requirements. (See Application ¶ 4.)

D.

Reduction of Amount to be Secured

Code of Civil

Procedure section 483.015, subd. (b) provides that the amount to be secured by the attachment shall be reduced by, inter alia: “(2) The amount of any indebtedness of the plaintiff that the defendant has claimed in a cross-complaint filed in the action if the defendant’s claim is one upon which an attachment could be issued.” Defendant has the initial burden of proof to satisfy the requirements of attachment for any offset claim. (See Code Civ. Pro. § 483.015 and Lydig Construction, Inc. v. Martinez Steel Corp. (2015) 234 Cal.App.4th 937, 945.) Among other requirements, “the contract sued on must furnish a standard by which the amount due may be clearly ascertained and there must exist a basis upon which the damages can be determined by proof.” (See CIT Group/Equipment Financing, Inc., supra, 115 Cal.App.4th at 541.)

Defendant has not

submitted an opposition, so has not satisfied the requirement to show any offset claim.

E.

Exemptions

Defendant

has not submitted an opposition so has not claimed any exemptions.

F.

Undertaking

Code of Civil

Procedure section 489.210 requires the plaintiff to file an undertaking before issuance of a writ of attachment. Code of Civil Procedure section 489.220 provides, with exceptions, for an undertaking in the amount of \$10,000. Plaintiff has not yet filed an undertaking at the time of the application, but must do so.

G.

Subject Property

Plaintiff requests attachment of any property of Defendant, a corporation.

(Application ¶ 9a.) That request

is proper. “[A]ll corporate property for which a

method of levy is provided by Article 2 (commencing with Section 488.300) of Chapter 8” may be attached. (Code Civ.

Pro. § 487.010, subd. (a).)

H.

Attorneys Fees

Code of Civil Procedure

section 482.110, subd. (b) provides, “[i]n the discretion of the court, the amount to be secured by the attachment may include an estimated amount for costs and allowable attorney’s fees.”

The amount to be secured

by attachment includes costs of \$673.12. The Court includes this total in the total writ amount.

CONCLUSION

The Court GRANTS the writ of attachment, in the amount of \$122,875.37.

IT IS SO ORDERED.

Dated: June 26,

2026

Joseph Lipner

Superior
Court Judge